Terms and Conditions of Service

TMG Plumbing & Heating Services · Effective 11 October 2026 · Replaces the terms dated 26 May 2025

1. About these terms

1.1 TMG Plumbing & Heating Services ("we", "us") is the registered business name of Tony McGuinness, a sole trader (Companies Registration Office business name number 667925). These terms apply to all work we carry out for you, including power flushing and system cleaning, demineralisation and water treatment, leak detection, and plumbing and heating work.

1.2 Your contract with us is our written quotation together with these terms. If the quotation says something different from these terms, the quotation applies.

1.3 You accept these terms when you accept our quotation, in writing or by email, or when you book the work.

1.4 Nothing in these terms affects your statutory rights as a consumer, including your rights under the Consumer Rights Act 2022.

2. Quotations

2.1 Our quotation is based on the information you give us and, where we've visited, on what we could see. If we find something on the day that changes the job, we'll explain it and agree any change in price with you before doing extra work.

2.2 Quotations are valid for 30 days unless they say otherwise.

2.3 All prices include VAT at the current rate.

3. Booking, cancelling and rescheduling

3.1 We'll agree a date with you. Work is carried out during normal working hours, Monday to Friday, excluding public holidays, unless we agree otherwise.

3.2 You can cancel or move your appointment free of charge up to 24 hours before it, by calling 051 577 089 or emailing info@tmgplumbing.ie.

3.3 If you cancel with less than 24 hours' notice, or we can't get in or can't start safely when we arrive (see clause 4), we may charge a late cancellation fee of €150. If you rebook within 10 working days, we'll take the fee off the price of the work.

3.4 Your right to cancel: if you agreed the work with us at your home, by phone or by email, you can cancel within 14 days without giving a reason, and no late cancellation fee applies. We'll refund your deposit within 14 days, less the cost of any work already done at your request. If you ask us to start within those 14 days, you'll pay for the work done up to the time you cancel. Once the work is complete, this right to cancel ends.

4. Your responsibilities

4.1 Give us safe access, at the agreed time, to the property, the boiler, the heating system and any area we need to work in.

4.2 Tell us before we start about anything we should know: known leaks, recent repairs, products already added to the system, asbestos, and, on commercial sites, your site rules and permit requirements.

4.3 Make sure you own the property or have the owner's permission for the work.

4.4 Keep children and pets away from the work area and our equipment.

4.5 Don't let anyone else work on the system between our visit and any return visit, as it may affect our guarantee.

5. Price and payment

5.1 The price is set out in our quotation.

5.2 A deposit of 50% of the quoted price is payable when you book. We'll email you an invoice for the balance when the work is done. You can pay through the secure payment link on the invoice, or by bank transfer. Payment is due by the date shown on the invoice.

5.3 Your deposit is taken off the final invoice. If a late cancellation fee applies under clause 3.3, we may take it from your deposit.

5.4 Extra work you ask for or agree to on the day, and any return visit not covered by our guarantee, is charged at our normal rates. We'll tell you the cost before we start.

5.5 Parts and materials stay our property until they've been paid for.

5.6 Business customers: if an invoice isn't paid on time, we may claim interest and compensation under the European Communities (Late Payment in Commercial Transactions) Regulations 2012.

6. Power flushing and system cleaning

6.1 A typical clean includes:

- an inspection of the system
- a sample of the system water, tested for pH, conductivity and signs of corrosion
- filtration through our machine at high flow but low pressure, with magnetic filtration to remove sludge and metal particles
- demineralising the water and topping up with treated water, with reference to VDI 2035 and the boiler manufacturer's water-quality requirements
- a final check of the system, with the results explained to you

6.2 We clean by filtration and magnetic separation. In most cases we don't need to drain the system or use cleaning chemicals. If a heavily sludged system needs a cleaning or treatment product, we'll explain why and agree it with you first.

6.3 The result depends on the condition of your system. We'll always work with reasonable care and skill, but we can't promise that every blockage or cold spot will clear, particularly where pipes or radiators are blocked solid or badly corroded.

6.4 Older systems: sludge and corrosion can hide weak points in radiators, pipes and valves. Cleaning can expose them, and an existing weak point may start to leak during or after the work. If that happens, we'll tell you straight away and quote for the repair. We aren't responsible for leaks caused by corrosion or wear that was already there, but we are responsible for damage caused by our own lack of care.

6.5 Blocked systems: if pipes or radiators are blocked solid, or valves are seized, and the system can't be fully cleaned on the day, the quoted price is still payable for the work done. We'll explain what's needed to clear the blockage and quote for it before going ahead.

6.6 Some systems, such as microbore pipework and older one-pipe systems, may not be suitable for power flushing. We'll tell you at the survey or before we start.

6.7 Power flushing cleans the system. It doesn't fix design or installation faults, and it isn't a safety check of your boiler.

7. Leak detection

7.1 We locate leaks using non-invasive methods such as thermal imaging, acoustic detection and pressure testing.

7.2 We'll do our best to find the leak, but we can't guarantee to find every leak. The leak detection fee is payable whether or not we're able to pinpoint the leak.

7.3 Leak detection doesn't include digging, lifting floors or opening walls. If the repair needs this, we'll quote for it separately, or you can use your own contractor.

8. Parts and materials

8.1 If we find a faulty or failing part, we'll tell you the cost of replacing it and only fit it with your agreement.

8.2 A replacement part may not be identical to the original or made by the same manufacturer, but it will be suitable for the job.

8.3 We're not responsible for delays when a supplier or manufacturer can't supply a part.

8.4 We'll leave old parts with you unless you ask us to take them away.

8.5 We only fit parts we supply.

9. Our guarantee

9.1 We'll carry out all work with reasonable care and skill, using suitably trained and experienced engineers.

9.2 Workmanship: if something goes wrong with work we did within 30 days, tell us and we'll come back and put it right free of charge. If on that visit we find the problem isn't related to our work, we'll tell you the cost before doing anything, and charge our normal rates.

9.3 Parts we supply are guaranteed for 12 months from fitting, or longer where the manufacturer's guarantee is longer. Please tell us about a faulty part as soon as you notice it.

9.4 This guarantee is in addition to your statutory rights.

10. What isn't covered

Our guarantee doesn't cover problems caused by:

- corrosion, wear and tear, or faults that were in the system before we started
- the original design or installation of the system
- work done on the system by anyone else after our visit
- misuse, neglect, accidental damage, frost, flood, fire or storm
- failure of the electricity, gas, oil or water supply
- a fault we told you about that you chose not to have fixed

11. Our liability

11.1 If we're at fault, we're responsible for loss or damage that is a foreseeable result of our failure to use reasonable care and skill.

11.2 We're not responsible for loss that wasn't foreseeable. For business customers, we're not responsible for indirect or consequential loss, such as loss of profit, loss of production or business interruption.

11.3 We're not responsible for delays or failures caused by events outside our reasonable control.

11.4 Nothing in these terms limits our liability for death or personal injury caused by our negligence, for fraud, or for anything else that can't be limited by law.

12. Commercial and industrial work

12.1 We'll provide the method statements, risk assessments and other documents agreed with you, and follow your site's induction, permit-to-work and change-control procedures.

12.2 If you issue a purchase order or contract, these terms apply alongside it. Where they conflict, the terms we've both agreed in writing take priority.

12.3 Shutdown windows and site access are agreed in advance. If a shutdown is cancelled or moved at short notice, or access isn't available as agreed, we may charge for time and equipment already committed.

12.4 Payment terms for commercial work are as stated on the quotation or invoice.

13. Subcontractors

We may use trusted subcontractors for part of the work. We remain responsible for their work.

14. Asbestos and hazardous materials

If we find or suspect asbestos or another hazardous material, we'll stop work in that area. A specialist contractor must deal with it before we continue, and we'll need their confirmation that the area is safe before we return.

15. Your personal information

We use your details to quote for, carry out and invoice the work, and to keep the records the law requires. Our privacy policy at www.tmgplumbing.ie/privacy-policy explains how long we keep your information and your rights. We'll only send you marketing with your consent, or about services similar to ones you've had from us, and you can opt out at any time.

16. Complaints

If you're unhappy with our work, call 051 577 089, email info@tmgplumbing.ie, or write to us at Unit 17F, Six Cross Roads Business Park, Waterford, X91 KV09. We'll look into it and do our best to put things right.

17. General

17.1 You can't transfer this contract to someone else without our written agreement.

17.2 If any part of these terms is found to be invalid, the rest still applies.

17.3 If we don't enforce a term straight away, we can still enforce it later.

17.4 We may update these terms. The version in place on the date you accept our quotation applies to your job.

17.5 These terms are governed by Irish law, and the Irish courts have jurisdiction.

17.6 Contact: Tony McGuinness trading as TMG Plumbing & Heating Services (CRO business name no. 667925), Unit 17F, Six Cross Roads Business Park, Waterford, X91 KV09 (trading address). Address registered with the CRO: 8 Berkeley Drive, The Beeches, Rockshire Road, Ferrybank, Waterford · 051 577 089 · info@tmgplumbing.ie